Gmail **Ann Tøndering <anntondering@gmail.com>**

Fwd: [Iliad] Sujet : Written confirmation of Zero Data Retention for Generative APIs (DPA art. 12.1)

1 meddelelse

ann@ditdigitalekontor.dk <ann@ditdigitalekontor.dk> 6. november 2026 kl. 12.44
Til: Anntondering <anntondering@gmail.com>

-------- Original Message --------

Subject:[Iliad] Sujet : Written confirmation of Zero Data Retention for Generative APIs (DPA art. 12.1)
Date:06.11.2026 11:03
From:"DPO Scaleway 1 (Iliad)" <privacy@scaleway.com>
To: Ann <ann@ditdigitalekontor.dk>
Reply-To: Iliad <privacy@scaleway.com>

Hello,

Here are the written confirmations on behalf of Scaleway regarding your use of Generative APIs (Serverless) for `mistral-medium-3.5-128b` and `whisper-large-v3` :

1. Zero Data Retention & Training Prohibition

- **Default Zero Data Retention (ZDR):** We confirm that the Zero Data Retention policy applies to all requests submitted to your projects for both chat completions and audio transcriptions.
- **In-Memory Processing:** Inputs, prompts, uploaded audio files, and generated outputs reside strictly in volatile memory (RAM) during active inference and are discarded immediately upon response completion. They are not written to persistent storage and are not recorded in routine application logs.
- **No Model Training:** Customer inputs, audio recordings, and completions are **never used by Scaleway or any third party** to train, fine-tune, improve, or evaluate models.

2. Operational Troubleshooting & Error-Retention Exception

- **Trigger Criteria:** Temporary retention of full HTTP request payloads is triggered strictly by **service-quality-impacting errors (e.g., HTTP 500 internal server errors)** or **detected malicious/abusive activity** targeting platform availability or security.
- **Maximum Retention Period: Yes.** Content is deleted as soon as root-cause analysis is concluded, and in all cases deleted automatically after at most **two weeks (14 calendar days)**.
- **Storage Location & Access:** Stored temporarily in encrypted form in **France (Paris — OPCORE datacenters)**. Access is restricted strictly to authorized members of Scaleway's **internal AI and**

infrastructure engineering team in France under multi-factor authentication (MFA) on a need-to-know basis.

- **Customer Notification: No.** Scaleway does not issue individualized notifications when a request is captured under this technical exception, as it constitutes lawful, contractually permitted operational troubleshooting rather than a personal data breach under Article 9 of the DPA.

3. Technical Metadata Storage & Separation

- **Stored Metadata:** Operational logs record standard technical fields: timestamps, HTTP status codes, latency, token counts, request duration, IP addresses, and API key identifiers (excluding the secret key).
- **Retention Duration:** Kept in operational systems for periods ranging from **15 days to 1 year** (depending on the technical log category) for capacity planning, billing reconciliation, and platform security.
- **Content Separation:** We confirm that **operational metadata logs contain no request content, prompts, audio payloads, or generated completions**.

4. Aggregated Usage Metrics

- **No Content or Traceability:** We confirm that the high-level usage metrics kept for up to **six months** are strictly aggregated, anonymized statistics (such as overall volume trends and platform capacity metrics). They contain no payload content, no personal data, and cannot be traced or linked back to individual requests or users.

5. Exclusive Hosting in Paris (`fr-par`) & Absence of Third Parties

- **Processing Location:** All inference processing, transcription, ephemeral caching, exception logs, and metadata are executed **100% in France, in our Paris datacenters (`fr-par` / OPCORE)** on Scaleway's proprietary infrastructure. Requests are never transferred, routed, or replicated outside the EU/EEA.
- **Zero Third-Party Involvement:** There are **zero external third-party subprocessors** in the Generative APIs inference path. Original model authors (such as Mistral AI or OpenAI/Whisper creators) have no access to customer payloads, audio data, outputs, or systems.
- **Internal Affiliate:** Colocation and physical infrastructure management are handled by **Op Core Datacenter**, an internal Scaleway group entity in France whose staff have no logical or application-level access to customer data.

6. Contractual Incorporation & Documentation

- **Existing Binding Documents:** These safeguards are already legally and contractually binding upon your account under:
    1. The **Data Processing Agreement (DPA)** (version of 1 June 2024 or consolidated terms).

2. The **Specific Conditions Applicable to AI Services** (notably Article 4.4, governing Zero Data Retention, the 14-day exception ceiling, and the zero-training commitment).
3. The binding Generative APIs Data Privacy Documentation.

Best regards,

Scaleway Privacy Team

Cet e-mail provient de Iliad. Fourni par Zendesk

Le 6 novembre 2026 à 06:26:09 UTC, Ann ann@ditdigitalekontor.dk a écrit :

> Hello,
>
> We are Dit Digitale Kontor, DK, 177b32f0-d5ad-4bc8-ba58-cbe14311df2d, and we use Scaleway Generative APIs in the fr-par region in two projects:
>
> - referater staging. aed40cbc-168e-46dc-bb74-e5af8a99919e
> - referater produktion, ec5673dd-9198-4880-a05c-9ce47e28b5c4
>
> We use chat completions (mistral-medium-3.5-128b) and audio transcriptions (whisper-large-v3). The requests may contain personal data about our customers' own customers, for example names and the content of their messages.
>
> Your documentation states that Generative APIs apply a Zero Data Retention policy (data privacy page). Under article 12.1 of the Data Processing Agreement (version of 1 June 2024), we kindly ask you to confirm the following in writing:
>
> 1. Zero Data Retention applies to all requests from the projects above, for both chat completions and audio transcriptions. The content of inputs, prompts, audio and outputs is not stored, logged or used for training.
> 2. Regarding the exception for "abnormal errors" and "malicious traffic":
>   - What criteria trigger the temporary storage of request content?
>   - Is the content deleted after at most two weeks?
>   - Where is it stored, and who has access to it?
>   - Are we notified when it happens?
> 3. Which metadata do you store (for example timestamps, status codes, token counts and parameters), for how long, and can you confirm that none of it contains request content?
> 4. Can you confirm that the aggregated usage data kept for up to six months contains no request content and cannot be linked to individual requests?
> 5. Is the processing done entirely in fr-par (Paris) and on Scaleway's own infrastructure, without any third party? This includes the model providers.
> 6. Please let us know whether this confirmation can be attached to our DPA, or whether a document already exists that covers it.

> Thank you in advance.
>
> Kind regards,
> Ann Tøndering
> Dit Digitale Kontor

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